

STATE OF NEW YORK

10675 --B

IN ASSEMBLY

March 20, 2026

Introduced by M. of A. BERGER -- read once and referred to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law and the education law, in relation to updating school concussion management and response protocols

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "concussion
2 management and awareness improvement act of 2027".

3 § 2. Subdivisions 28 and 31 of section 206 of the public health law,
4 as amended by chapter 159 of the laws of 2026, are amended to read as
5 follows:

6 28. The commissioner shall assist the commissioner of education in
7 developing rules and regulations, relating to pupils who suffer mild
8 traumatic brain injuries and the physicians, physician assistants and
9 nurse practitioners authorized to evaluate such pupils, in accordance
10 with subdivision forty-two of section three hundred five of the educa-
11 tion law, and provide for the posting on the department's internet
12 website of such information as shall be required pursuant to such subdi-
13 vision.

14 31. The commissioner shall develop information, in conjunction with
15 the commissioner of education related to students who exhibit signs or
16 symptoms of pending or increased risk of sudden cardiac arrest. Such
17 information shall include, but not be limited to, the definition of
18 sudden cardiac arrest, signs and symptoms of sudden cardiac arrest, and
19 information for the physicians, physician assistants and nurse practi-
20 tioners authorized to evaluate whether a student may resume athletic
21 activity. Such information shall be posted on the department's website.

22 § 3. Paragraph a of subdivision 42 of section 305 of the education
23 law, as added by chapter 496 of the laws of 2011, subparagraph (iii) as
24 amended by chapter 159 of the laws of 2026, is amended to read as
25 follows:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 a. The commissioner, in conjunction with the commissioner of health,
2 shall promulgate and review as necessary rules and regulations relating
3 to pupils who suffer mild traumatic brain injuries, also referred to as
4 a "concussion," while receiving instruction or engaging in any school
5 sponsored or school related activity. In developing such rules and
6 regulations, the commissioner shall consider comments from stakeholders
7 and other interested parties including but not limited to parents,
8 teachers, students, school administrators, school athletic trainers,
9 sport coaches, medical and health professionals, the public schools
10 athletic league (PSAL), the New York state public high school athletic
11 association (NYSPHSAA), and other athletic associations. Such regu-
12 lations shall include, but not be limited to:

13 (i) requiring a course of instruction relating to recognizing the
14 symptoms of mild traumatic brain injuries and monitoring and seeking
15 proper medical treatment for pupils who suffer mild traumatic brain
16 injuries. Such course of instruction shall be required to be completed
17 on a biennial basis by all school coaches, physical education teachers,
18 nurses ~~[and]~~, athletic trainers, and medical directors employed by or
19 under contract to a school or school district. The course of instruc-
20 tion required by this subparagraph shall include, but not be limited to,
21 the definition of a "concussion," signs and symptoms of mild traumatic
22 brain injuries, how such injuries may occur, practices regarding
23 prevention, and the guidelines for the return to school and to certain
24 school activities after a pupil has suffered a mild traumatic brain
25 injury regardless of whether such injury occurred outside of school.
26 Such training may be completed by means of courses of instruction,
27 including but not limited to, courses provided online and by teleconfer-
28 ence approved by the department;

29 (ii) providing that the department and the department of health shall
30 post on their internet websites information relating to mild traumatic
31 brain injuries, which shall include but not be limited to, the defi-
32 nition of a "concussion," signs and symptoms of mild traumatic brain
33 injuries, how such injuries may occur, and the guidelines for the return
34 to school and to certain school activities after a pupil has suffered a
35 mild traumatic brain injury regardless of whether such injury occurred
36 outside of school. Schools shall be required to include such information
37 in any permission form or parent or person in parental relation consent
38 form or similar document that may be required for a pupil's partic-
39 ipation in interscholastic sports and shall also include such informa-
40 tion, or reference how to obtain such information from the department
41 and the department of health internet websites, on the school's internet
42 website, if one exists;

43 (iii) requiring the immediate removal from athletic activities of any
44 pupil believed to have sustained or who has sustained a mild traumatic
45 brain injury. In the event that there is any doubt as to whether a pupil
46 has sustained a concussion, it shall be presumed that such pupil has
47 been so injured until proven otherwise. No such pupil shall resume
48 athletic activity until such pupil shall have been symptom free for not
49 less than twenty-four hours, has returned to a full class schedule with-
50 out academic accommodations made due to the mild traumatic brain inju-
51 ry, and has been evaluated by and received written and signed authori-
52 zation from a licensed physician, physician assistant or a certified
53 nurse practitioner. Such authorization shall be kept on file in the
54 pupil's permanent health record. Furthermore, such rules and regulations
55 shall provide guidelines for limitations and restrictions on school and
56 athletic attendance and activities for pupils who have sustained mild

1 traumatic brain injuries, consistent with the directives of the pupil's
2 treating physician or a nurse practitioner.

3 (iv) authorizing each school or school district, in its discretion, to
4 establish a concussion management team which may be composed of the
5 athletic director (if any), a school nurse, the school principal, a
6 school guidance counselor, a school teacher, the school [~~physician~~] or
7 district medical director, a coach of an interscholastic team, an
8 athletic trainer or such other appropriate personnel as designated by
9 the school or school district. The concussion management team shall
10 oversee the implementation of the rules and regulations promulgated
11 pursuant to this subdivision as it pertains to their associated school
12 including the requirement that all school coaches, physical education
13 teachers, nurses and athletic trainers that work with and provide
14 instruction to pupils engaged in school sponsored athletic activities
15 complete training relating to mild traumatic brain injuries. Further-
16 more, every concussion management team may establish and implement a
17 program which provides information on mild traumatic brain injuries to
18 parents and persons in parental relation throughout each school year.

19 § 4. This act shall take effect on the first of July next succeeding
20 the date on which it shall have become a law.